



Application for **waiver of fees** (individual)

LEGAL AID | BENEFIT | PREVIOUS WAIVER

When to use this form

Use this form if:

- you have legal aid or have a legal aid application awaiting a decision
- you receive a benefit
- you have previously been granted a waiver in this proceeding.

Step 1 Give us your court case details

File no.

Name of proceeding **BENSON v SKARIACHAN**

Please tick the court that your application is for.

☐ Supreme Court ☐ Court of Appeal ☐ High Court ☐ District Court ☒ Family Court

Step 2 Give us your details

Full name **Michelle Benson**

Occupation **Mother**

Address **1/6 Kimberley Road, Epsom**

Contact phone numbers **027 349 4635**
day other

Step 3 Give us the details of your waiver request

I apply for a waiver of the filing fee \$ ^{242.00} to file
Application for Parenting Order
either (list the documents)

or (state other type of fee, such as setting down or hearing fee)

Tell us why you're applying for a waiver (select one)

- ☐ I have been granted legal aid to take this step in the proceeding.
- ☒ I have applied for legal aid to take this step and the application has not yet been determined. I apply for postponement of the fee until the application has been determined and agree that if legal aid is not granted I will pay the fee without delay.
- ☐ I have not been granted legal aid and am wholly dependent on:
- | | |
|---|---|
| ☐ unemployment benefit | ☐ emergency benefit |
| ☐ domestic purposes benefit | ☐ independent youth benefit |
| ☐ sickness benefit | ☐ invalid's benefit |
| ☐ New Zealand superannuation | ☐ veteran's pension |
| ☐ transitional retirement benefit | ☐ widow's benefit |
| ☐ other | |
- ☐ On (date) I was granted a waiver in this proceeding on grounds of financial hardship and my circumstances have not changed.
- ☐ On (date) I was granted a waiver in this proceeding on grounds of genuine public interest and those grounds still apply to these proceedings.

Step 4 Confirm the appropriate documents are attached

If you are applying because you receive **legal aid** (or have applied for legal aid), you need to attach:

- ☐ A copy of the letter from the Ministry of Justice granting legal aid.

If you are applying because you receive a **benefit**, you need to attach:

- ☐ A recent letter from Work and Income, or other relevant documentation, showing that you currently receive a benefit or NZ Superannuation or veteran's pension.

If you've been **granted a waiver previously**, you don't need to attach documentation.

Step 5 Sign and date this form

I certify that the contents of this application are true.

Signature *pp fatovic Anik*

signed on behalf of Michelle Benson

29.1.2026

Date

Step 6 Do a quick check

Before sending in your application check

Have you followed steps 1 to 5?

 Have you attached a copy of the letter granting legal aid or a recent letter from Work and Income showing that you currently receive a benefit, superannuation or pension (see Step 4)?

If you have any questions, please call your local court.

See justice.govt.nz/services/finding-your-local-court or the blue pages of your phonebook for contact details.

Step 7 Submit your application

Send this application to the court.

See justice.govt.nz/services/finding-your-local-court or the blue pages of your phonebook for details.

What happens next?

A registrar will consider your application and will let you know their decision.

If your application is declined, you can apply to have the decision reviewed

Please fill out the 'application for review' form. There is no fee.

The 'application for review' form is available at your nearest court or from justice.govt.nz/services/court-fees

Your 'application for review' needs to be made within 20 working days of receiving the declined decision.

You can apply to a judge for an extension of that time.

Where can I go for more information?

Check our website at justice.govt.nz/services/court-fees

Call your local court. Details can be found in:

- justice.govt.nz/services/finding-your-local-court
- blue pages of your phonebook.

Talk to a lawyer or your local community law centre.